

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 7188/02
Ruslan Petrovych ZAYCHENKO
against Ukraine

The European Court of Human Rights (Fifth Section), sitting on 24 January 2012 as a Committee composed of:

Mark Villiger, *President,*
Ganna Yudkivska,
André Potocki, *judges,*

and Stephen Phillips, *Deputy Section Registrar,*

Having regard to the above application lodged on 7 May 2001,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Ruslan Petrovych Zaychenko, is a Ukrainian national who was born in 1963 and died in 2011. He was represented before the Court by Mr Y. O. Nikolenko, a lawyer practising in Kyiv. The Ukrainian Government ("the Government") were represented by their Agent, Mrs V. Lutkovska, from the Ministry of Justice.

The applicant's complaints under Articles 3, 5, 6, 8, 10 and 11 of the Convention concerning inhuman treatment, unlawful detention, and procedural violations within the criminal proceedings against him for participation in a demonstration were communicated to the Government, who submitted their observations on the admissibility and merits. The observations were forwarded to the applicant, who submitted his own observations in reply. On 11 July 2011 the applicant died.

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By letter dated 19 July 2011, sent by registered post, the applicant's representative was invited to inform the Court before 15 September 2011 whether any heir of the applicant has expressed the wish to pursue the proceedings. However, no reply was received. By letter dated 11 October 2011, sent by registered post, the applicant's representative's attention was drawn to Article 37 § 1 of the Convention, which defines the circumstances in which that the Court may strike a case out of its list of cases. However, no response has been received.

THE LAW

In the light of the foregoing the Court concludes that no heir has expressed the wish to pursue the application in the applicant's stead. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Stephen Phillips Deputy Registrar	Mark Villiger President